

Irish Statutory Sick Pay

User Guide

Access Limited Distribution

PeopleXD Payroll

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Document Control

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1.1	25 th Nov 2022	Isabelle Grey	Update to sections: 3.2.2. Daily Rate of Pay Calculation 4.2. Statutory Sick Pay Settings

1. Overview

1.1. Purpose of the Guide

The purpose of this document is to provide guidance on how to process Statutory Sick Pay for Irish Pay Groups. This document covers the following:

- Statutory Sick Pay requirements.
- Software changes introduced to assist employers operate Statutory Sick Pay.
- Steps required to configure PeopleXD for Statutory Sick Pay.



Disclaimer:

- Regulations & Employer guidance from the Department is only due to be published by 30th November 2022.
- The Department have also advised the Regulations will not go into detail to specify the calculation methodology.
- Users should therefore be aware that the software as outlined in this guide is based on available information at time of release and may be subject to change in the future.
- Users have the ability to override the system SSP calculation should they wish to do so.

1.2. Irish Statutory Sick Pay

1.2.1. SSP Requirements

- Sick pay will be paid by employers at a rate of 70% of an employee's wage, subject to a daily threshold of €110 which is based on 2019 mean weekly earnings of €786.33 which equates to an annual salary of €40,889.16 (weekly salary of €786.33 divided by 5 days multiplied by 70% = €110.08).
- It will start with three days payable per year in 2023. Only certified sick days are eligible for SSP.
- The entitlement for payment of sick pay is subject to the employee having worked for their employer for a minimum of 13 weeks.
- Once entitlement to sick pay from their employer ends, employees who need to take more time off may qualify for illness benefit from the Department of Social Protection subject to PRSI contributions.
- The legislation does not prevent employers offering better terms or unions negotiating for more through a collective agreement.

2. SSP Eligibility

The following eligibility checks must be passed for the system to deem an employee eligible for SSP.

- **Employee Service**

An Employee must have a minimum of 13 weeks continuous service. The system checks for the first match of an employees:

- TUPE Date - if the Enable TUPE Date parameter is enabled
- Latest Start Date
- Employee Start Date

- **SSP Days**

- An employee is eligible for up to 3 SSP days per calendar year.
- From day 4 no SSP will be paid.

- **Duplicate Claim**

- SSP can only be claimed once for a transaction date.
- If a record is created with a transaction date where SSP has already been paid the system will not pay SSP again.

- **Pre 1st January 2023 Records**

- SSP cannot be claimed pre 1st January 2023.
- If a SSP transaction date is before 1st January 2023 SSP will not be paid.

- **SSP Override**

- If a timesheet is created using the SSP override payment Pay Code no system calculation is made.

2.1. View Gross to Nett Messages

For certain circumstances the system generates messages in the view gross to nett exception to inform you when an employee is not eligible for SSP.

To view gross to nett messages:

1. Navigate to the **Payroll Dashboard**.
2. Select the relevant **Pay Group**.
3. Click the **Payroll Checking** tab.
4. Click **View Gross to Nett**.

Message	Description
SSP for ' date ' is not entitled to SSP as service <13 weeks	Employee is not entitled to SSP as they have not met the minimum continuous service.
SSP for ' date ' is not entitled to SSP as allowable days 3 exceeded	Employee is not entitled to SSP as they have exceeded the yearly claim limit.
SSP for ' date ' is before 1/1/2023, not eligible for payment	Employee is not entitled to SSP as the transaction date is before 1 st January 2023.
SSP for ' date ' is already paid	Employee is not entitled to SSP for the displayed transaction date as it has already been paid in a previous period.
SSP date ' date ' is already claimed	Employee is not entitled to SSP for the displayed transaction date as there is a duplicate entry.

3. SSP Payment

3.1. Recording SSP

Certified SSP can be recorded in People Management, WFM or Payroll. It is the recording of transactions against Certified Sick Pay Codes in either People Management, WFM or Payroll that will trigger a potential SSP payment.

See the configuration section of the user guide for how to configure Certified Sick Pay Codes on the system.

 Note:

If SSP is recorded after the confirm timesheet task is run, then it will not be calculated until the next payroll period.

3.2. SSP Calculation

Once a sickness absence is recorded using certified sick Pay Codes SSP will be calculated when the Payroll Validation task is run as part of the Payroll Process.

 Note:

The SSP software will only run for:

- Irish Pay Groups.
- Where the SSP Rules have been configured

The SSP calculation task completes the following:

1. Calculates the number of SSP days.
2. Calculates a daily rate of payment based on how an employee is paid:
 - a. Employees Paid by Salary
 - b. Employees Paid by Positive Input
3. Calculates the SSP Payment Total.
4. Compares the total to the daily payment cap.
5. Creates an SSP timesheet.

3.2.1. SSP Days Calculation

An employee is eligible for up to 3 SSP days. The system will calculate how many SSP days the sickness record contains and compare to the total number of SSP days the employee has taken in the calendar year.

3.2.2. Daily Rate of Pay Calculation

The system calculates the daily rate of pay for the employee on the SSP days.

Only pay codes configured as SSP elements are included in this calculation.

Note:

There is no guidance available in relation to the treatment of variable earnings in this calculation other than it should be based on what an employee would have earned had they worked that day. The system will therefore only assess and include permanent pay elements in the daily pay calculation as those are the only earnings a system can know an employee would have earned had they worked. If required, you can record an adjustment or override to the system calculated value.

The calculation varies based on how an employee is paid:

- **Employee Paid by Salary**
 - The daily rate is calculated using the transaction date of the SSP record and the Salary & Permanent Allowances on that date.
 - Only the pay codes configured as SSP elements are then included in the SSP Daily pay calculation.
- **Employees Paid by Positive Input**
 - The daily rate is calculated using the transaction date of the SSP record and the Salary & Permanent Allowances on that date.
 - Only the pay codes configured as SSP elements are then included in the SSP Daily pay calculation.

**Note:**

The daily rate of pay for a Positive Input employee will be based on their permanent earnings not timesheets entered on the transaction date.

How the system will derive a daily rate of pay for the employee is dependent on the employee(s) current setup. Below are some examples. The daily rate is calculated inclusive of all permanent salary and allowances that have been configured as elements for the SSP calculation.

Hourly Rate

If the employee is set up on an hourly rate the system will derive a Daily rate for those hourly employees based on the employees standard hours as per the transaction date on the SSP claim. The standard hours are taken from the Employee table which takes them from HR whenever there has been a contract update. Where an employee has multiple appointments only the substantive is used for this check.

- **Example:**

- Hourly rate of pay: €10 per hour
- FTE Hours*: 40
- Days in the Week: 7
- Daily rate of Pay: $(€10 \times 40) / 7 = €57.14$
- If 70% of the daily rate of pay is > the daily max €110 then the SSP payment to the employee would be capped at €110.

**Used where the system is configured for FTE Hours, where that is not enabled hours are used instead.*

Daily Rate

If the employee is set up on a daily rate the system will use that daily rate as per the transaction date on the SSP claim. Where an employee has multiple appointments only the substantive is used for this check.

- **Example:**

- Daily rate of pay: €140

- If 70% of the daily rate of pay is > the daily max €110 then the SSP payment to the employee would be capped at €110.

Weekly Rate

If the employee is set up on a weekly rate the system will derive a Daily rate for those weekly rate employees based on the employees weekly rate divided by the number of days in the week configured on the pay group. Where an employee has multiple appointments only the substantive is used.

- **Example:**

- Weekly Rate: €1,000 and days in the week 7 days
- Daily rate of pay: €142.86
- If 70% of the daily rate of pay is > the daily max €110 then the SSP payment to the employee would be capped at €110.



Note:

The system does not look at Roster days or WFM Days recorded. In lieu of official Regulations/Guidance from the Department on how SSP should be calculated this is a basic level check only. Users have the ability to override the system calculation, should they wish, by entering a timesheet against the SSP payment override pay code.

Annual Rate

If the employee is on an annual salary rate the system will derive a Daily rate for those annual rate employees based on the employees annual salary divided by the number of days in year on the pay group. Where an employee has multiple appointments only the substantive is used for this check.

- **Example:**

- Annual Rate €60,000 and days in the year 260.
- Daily rate of pay: €230.76
- If 70% of the daily rate of pay is > the daily max €110 then the SSP payment to the employee would be capped at €110.

3.2.3. Calculate SSP Payment Total

The 2023 rate of payment for statutory sick leave is 70% of normal wages to be paid by employers (up to a maximum €110 per day).

The system will calculate the SSP Payment total using the daily rate of pay and the SSP payment percentage.

3.2.4. Compare SSP Payment Total to Maximum Payment Cap

The 2023 maximum daily payment is €110. The system will compare the SSP Payment Total to this figure. If the SSP Payment Total exceeds the cap the maximum daily payment cap will be used for payment.

3.2.5. SSP Payment Timesheet

A timesheet is then created for the SSP Payment against the SSP Payment Pay Code.

The payment is costed against the Cost Centre, Project, Expense Code, transaction date from the appointment.

3.3. **View/Review SSP Timesheet**

Once the Payroll Validation task has been run all SSP for the period is calculated and timesheets are created on employee records.

To view a SSP record:

1. Navigate to *Payroll Dashboard > Employee*
2. Search for the relevant employee and click **View**.
3. Click the **Timesheets Current Period** tab.

3.4. Add Manual SSP Timesheet

If you want to manually record SSP the SSP override Pay Code can be used to create a timesheet on an employee's record.

When you record a timesheet for SSP against the override Pay Code the system will take the value used on the time sheet and will not perform any system calculation.

3.5. Rerunning Payroll Validation Task

Rerunning the Payroll Validation task will delete system created SSP timesheets.

- Where **no Override Pay Code** timesheet exists: A new system generated timesheet will be created on the employee's record.
- Where **an Override Pay Code** timesheet exists: The system will not perform a calculation or generate a SSP timesheet.

4. Configuring Irish SSP

To configure Irish SSP you need to:

1. Create SSP Pay Codes
2. Update the system parameters
3. Update the payment parameters
4. Update the SSP Element and SSP Absence Pay Codes

4.1. Create SSP Pay Codes

You will need to create two Pay Codes for Irish SSP:

1. SPP Payment Pay Code
2. SSP Override Payment Pay Code



Note:

For further guidance on creating Pay Codes refer to the [Pay Code Wizard - User Guide](#).

To create the Pay Codes:

1. Navigate to *Payroll Dashboard > Settings > Pay Code*
2. Click **Create New Pay Code**.
3. Populate the details:
 - a. Payment Type = Allowance
 - b. Payment Subset Type = Standard Value
4. Click **OK**.
5. Update the **Pay Code Formula**.
6. Add the following **Rules**:
 - a. Taxable
 - b. USCable
 - c. PRSlable
 - d. Included in Gross Pay
7. Add the **General Ledger Rules**.
8. Click **Save**.
9. Repeat for the second Pay Code.



Note:

You will also need to consider impact on their general ledger and review/update the matrix if applicable.

4.2. Statutory Sick Pay Settings

The *Statutory Sick Pay Settings* screen is used to configure the system parameters, payment parameters and Pay Codes for Irish SSP.



Note:

This screen is available on Portal only. Sites operating payroll on back office still should use the Portal screen to enable the SSP rules.

To access the screen:

1. Navigate to *Payroll Dashboard > Settings*
2. In the *Absence Configuration* section, click **Statutory Sick Pay Settings**.

The *Statutory Sick Pay Settings* screen opens:

Date Effective	SSP Days	Qualifying Weeks	Payment Percent	Max Payment
01-Jan-2023	3	13	70	110
01-Jan-2024	5	13	70	110
01-Jan-2025	7	13	70	110
01-Jan-2026	10	13	70	110

4.2.1. Portal Access

Sites with a Portal user:

- If you do not currently have a Portal account then the Portal User Security Administrator in your company will be able to set you up with a Portal user account.
- If, when you log in to Portal, you do not have access to the statutory sick pay screen then they will need to assign the correct Menu Profile to your Portal account.



Note:

For further guidance on creating a new Portal user refer to the [Security user guide](#).

Sites with no Portal user:

- If your site does not currently have any Portal users, you will need to raise a ticket with Access for us to create a Portal user.
- Please raise the ticket with the
 - Subject: SSP in Ireland – Portal Menu Profile Request
 - Details: Comment on the ticket that this is raised for the attention of the Legislation Team
- On receipt of the request, we will create the first Portal user for you and confirm the username/password
- Any additional Portal users required should then be created by the nominated Portal user.

4.2.2. Menu Profile Access

The below Menu Profile enables all available menu options by default. Once enabled on a users account in Security they will have full access to the Statutory Sick Pay Settings screen.

Menu Profile

STAT_SICK_PAY_IE_USER

4.2.3. Menu Options Required

To access the *Statutory Sick Pay Settings* screen, users require the following menu options:

Menu Option	System
WS_PAYROLL_MENU.DELETE_SETTINGS_STATSICKPAY_ID	Web Services
WS_PAYROLL_MENU.GET_SETTINGS_STATSICKPAY	Web Services
WS_PAYROLL_MENU.PATCH_SETTINGS_STATSICKPAY	Web Services
WS_PAYROLL_MENU.POST_SETTINGS_STATSICKPAY	Web Services
WS_PAYROLL_MENU.GET_SETTINGS_STATSICKPAY_PAYMENTPARAMS	Web Services
WS_PAYROLL_MENU.PATCH_SETTINGS_STATSICKPAY_PAYMENTPARAMS	Web Services
WS_PAYROLL_MENU.GET_PAYCODE_STATSICKPAY	Web Services
WS_PAYROLL_MENU.PATCH_PAYCODE_STATSICKPAY	Web Services
SETTINGS_MENU.STATUTORYSICKPAY	CorePortal Pay

Note:

As part of the release these menu options have been automatically enabled for anyone with access to the *Settings > Pay Code* screen.

4.3. Update System Parameters

To update the Irish SSP system parameters:

1. Navigate to the *Statutory Sick Pay Settings* Screen.
2. Click the **System Parameters** tab.

Statutory Sick Pay Settings

Payroll Dashboard > Statutory Sick Pay Settings

System Parameters

Payment Parameters

Pay Codes

ADD STATUTORY SICK PAY PARAMETER

Date Effective	SSP Days	Qualifying Weeks	Payment Percent	Max Payment	
01-Jan-2023	3	13	70	110	⋮
01-Jan-2024	5	13	70	110	⋮
01-Jan-2025	7	13	70	110	⋮
01-Jan-2026	10	13	70	110	⋮

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3. Click the relevant 3 dot menu.

4. Click **Edit**.
5. Enter the new details.
6. Click **OK**.

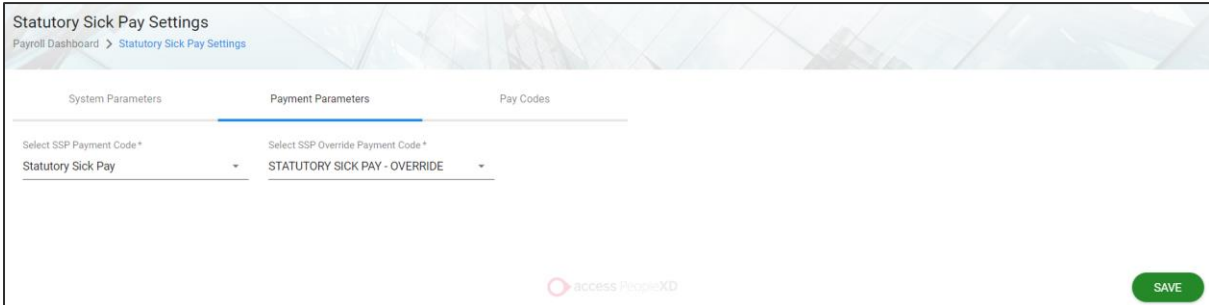
The fields available on the *System Parameters* screen are:

Field	Description
Date Effective	This is the date effective of the rule.
SSP Days	This is the maximum number of SSP days allowable.
Qualifying Weeks	This is the qualifying weeks to be eligible
Payment Percent	This is the percent to be used in the SSP payment calculation
Max Payment	This is the capped max daily rate to be used in the SSP payment calculation

4.4. Update Payment Parameters

To update the Irish SSP payment parameters:

1. Navigate to the *Statutory Sick Pay Settings* Screen.
2. Click the **Payment Parameters** tab.



The screenshot shows the 'Statutory Sick Pay Settings' screen. At the top, there's a breadcrumb trail: 'Payroll Dashboard > Statutory Sick Pay Settings'. Below this, there are three tabs: 'System Parameters', 'Payment Parameters' (which is selected and highlighted with a blue underline), and 'Pay Codes'. Under the 'Payment Parameters' tab, there are two sections. The first section is 'Select SSP Payment Code*' with a dropdown menu showing 'Statutory Sick Pay'. The second section is 'Select SSP Override Payment Code*' with a dropdown menu showing 'STATUTORY SICK PAY - OVERRIDE'. At the bottom right of the screen, there is a green 'SAVE' button. The PeopleXD logo is visible at the bottom center.

3. Select a pay code from the relevant drop down menu.
4. Click **Save**.

The fields available on the *Payment Parameters* screen are:

Field	Description
Select SSP Payment Code	This is the pay code that the system will generate a timesheet against for the calculated SSP payment value.
Select SSP Override Payment Code	When a user records a timesheet for SSP against this override pay code the system will take the value used on this time sheet and will not perform any system calculation

4.5. Update the SSP Element and SSP Absence Pay Codes

To update the Irish SSP Pay Codes:

1. Navigate to the *Statutory Sick Pay Settings* Screen.
2. Click the **Pay Codes** tab.

Pay Code	SSP Element	SSP Absence	
AB TEST 2 1502	☐	☐	⋮
Sick Pay 7559	☐	☐	⋮
% Allowance 9099	☐	☐	⋮
1001 BACK PAY 1002	☐	☐	⋮
1008 HOLIDAY PAY OUTPUT STD 1008	☐	☐	⋮
1105 BASIC HOURS 1105	☐	☐	⋮
1106 BASIC HOURS 1.5 1106	☐	☐	⋮
1107 BASIC HOURS 2 1107	☐	☐	⋮

3. Click the relevant 3 dot menu.
4. Click **Edit Row**.
5. Enable/disable the relevant toggles.
6. Click **OK**.
7. Repeat for all relevant SSP Pay Codes

The fields available on the *Pay Codes* screen are:

Field	Description
SSP Element	Enable to identify pay codes to be included in the system relevant pay calculation.
SSP Absence	Enable to identify the pay codes that will be used for Certified sick. SSP will only calculate for claims against the SSP Absence pay code.



Note:

The employee must provide their employer with a certificate from a registered medical practitioner and the certificate must state that the employee named is unfit to work due to their illness or injury. For this reason, users need to define what Time or Pay Codes are eligible for certified sick.